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CASE #	CASE NAME	HEARING NAME
CVME2502052	BAMIDELE YAZID vs UNIVERSAL HEALTH SERVICES OF RANCHO SPRINGS, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR KEREENYAGA BAMIDELE YAZID

Tentative Ruling: Appearances required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2201676	H. vs COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: Defendant County of Riverside's Motion for Summary Judgment is denied.

Defendant County of Riverside's Motion for Summary Adjudication as to the first and fourth issues are granted because the claims of vicarious liability are time-barred, and therefore, the issue as to whether discretionary immunity applies to Plaintiff's vicarious liability claims is moot; it is also granted as to the third issue because non-statutory claims for negligent hiring, supervision and training do not lie against public entities; it is denied as to the second and fifth issues because Plaintiff has established triable issues as to whether the County violated mandatory statutory duties and whether the County had actual knowledge of the abuse.

REQUEST FOR JUDICIAL NOTICE:

The County requests judicial notice of several statutes in effect at the relevant times when the abuse occurred. The request is granted under Evid. Code § 452(b), which provides for judicial notice of legislative enactments.

SUMMARY JUDGMENT

Any party may move for summary judgment in any action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a).) "A defendant's motion for summary judgment should be granted if no triable issue exists as to any material fact and the defendant is entitled to a judgment as a matter of law." (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal. 4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 850.) Once the moving party's burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) The moving party's evidence must be

strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal. App. 4th 1017, 1048.)

Pursuant to CCP §437c(f)(1), a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, claims for damages or issues of duty. "Summary adjudication motions are procedurally identical to summary judgment motions." (*Serri v. Santa Clara University* (2014) 226 Cal. App. 4th 830, 859.) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, affirmative defense, claim for damages or issue of duty, which has no merit. (*Smith v. Wells Fargo Bank, N.A.* (2005) 135 Cal. App. 4th 1463, 1472.) "Under the statute, adjudication of facts or issues that do not completely dispose of a cause of action, defense, claim for damages or issue of duty is improper. (*Lilienthal & Fowler v. Superior Court* (1993) 12 Cal. App. 4th 1848, 1853.)

Negligence:

The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.) Under the California Government Claims Act, Gov. Code § 810 *et seq.*, "a public entity is not liable for injury arising from an act or omission except as provided by statute." (See *Creason v. Department of Health Services* (1998) 18 Cal.4th 623, 630-31.) In this case, Plaintiff asserts both direct negligence claims against the County pursuant to Gov. Code § 815.6 and vicarious liability claims under Gov. Code § 815.2.

Issue 1: The Vicarious Liability Theory is Time-Barred:

Pursuant to CCP § 340.1, there is no time limit for the commencement of an action for recovery of damages suffered as a result of childhood sexual assault, including an action for liability against any person or entity who owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in injury to the plaintiff. (CCP § 340.1(a)(2).)

Notwithstanding section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later. (CCP § 340.11(a).) CCP § 340.11(c) states that "[n]othing in this subdivision shall be construed to constitute a substantive change in negligence law."

The alleged abuse occurred from 2002-2004. (UMF No. 6.) Plaintiff was born on September 10, 1990. (Decl. of H.H., ¶ 2.) Thus, the Complaint filed on April 27, 2022, was filed within 22 years of date on which Plaintiff attained the age of majority in 2008.

Thus, if the claims are based on acts or omissions of the County, the revival statutes apply and the claims are not time-barred.

The County argues that Plaintiff's claims are time-barred because sections 340.1 and 340.11 do not apply to claims based on vicarious liability. Vicarious liability is a way in which to impose strict liability on employers for tortious acts committed by their employees within the scope of employment. Section 340.11's indication that "Nothing in this subdivision shall be construed to constitute a substantive change in negligence law" relates to the duty of care and an entity's obligation to take "reasonable steps or to implement reasonable safeguards to avoid acts of childhood sexual assault." It does not refer to theories of liability. The revival statutes require an act, whether intentional or negligent, by the person or entity. A claim based on vicarious liability holds a defendant that is free from fault liable for acts or omissions of another party. (*Martin v. PacificCare of California* (2011) 198 Cal. App. 4th 1390, 1407.) Because the claims of vicarious liability do not involve any acts or omissions of the County, the revival statute does not apply. These claims are, therefore, time-barred. To the extent that the direct and vicarious liability claims involve separate issues of duty, summary adjudication is granted as to the first issue.

Issue 2: The Statutes and Regulations Cited by Plaintiff Do Not Create Mandatory Duties :

Pursuant to Gov. Code § 815.6, where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty. "To qualify for the [mandatory duty] exception, a plaintiff must establish (1) the existence of an enactment that imposes a mandatory, not discretionary, duty on the public entity and (2) that the enactment is intended to protect against the particular kind of injury the plaintiff suffered." (*Tuthill v. City of San Buenaventura* (2014) 223 Cal.App.4th 1081, 1089 [citing *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498–99].)

Plaintiff alleges that the County failed to discharge mandatory duties set forth in Welf. & Inst. Code §§328, 16501(f), and 16504; Health & Safety Code § 1522, et seq., Pen. Code §§ 11165.7, 11165.9 and 11166; Dept. of Social Services Child Welfare Services Manual sections 31-320, 31-401, et seq., and 31-501. (Comp., ¶ 68.) The Opposition focuses primarily on the mandatory reporting rules under the Child Abuse Neglect and Reporting Act, Pen. Code § 11166 and the mandatory duty to investigate claims of abuse under Welf. & Inst. Code §16501(f).

In the interest of prevention of child abuse, California enacted the Child Abuse and Neglect Reporting ACT ("CANRA") which incorporated a comprehensive reporting scheme "requiring person in positions where abuse is likely to be detected to report promptly all suspected and known instances of child abuse to authorities for follow-up investigation." (*Storch v. Silverman* (1986) 186 Cal.App.3d 671, 676; Pen. Code, §11164 et seq.) CANRA designates as "mandated reporters" certain professionals who are in positions likely to detect child abuse, including social workers. (Pen. Code,

§11165.7(a)(15). Additionally, CANRA requires a county probation or welfare department to immediately, or as soon as practicably possible, report by telephone, fax or electronic transmission to the law enforcement agency having jurisdiction over the case, to the agency given the responsibility for investigation and to the district attorney's office, every known or reasonably suspected instance of child abuse or neglect. (RJN, Ex. J. Pen. Code § 11166(i).) "[T]he determination of whether a reported incident involves child abuse or neglect is a mandatory, not a discretionary, function." (*Holman v. County of Butte* (2025) 111 Cal. App. 5th 177, 195.) In determining that the cross-reporting duties imposed upon law enforcement were mandatory rather than discretionary, the California Supreme Court stated, "[a]lthough in some instances it may require the exercise of judgment to identify whether a report involves child abuse or neglect, such a determination does not involve the exercise of discretion. Deciding if conduct falls into a defined category does not require the consideration of a host of potentially competing factors that is the hallmark of discretion." (*B.H. v. County of San Bernardino* (2015) 62 Cal. 4th 168, 181.) Likewise, the duty of welfare agencies to cross-report is a mandatory duty that is triggered by the receipt of a mandated child abuse report. (*Holman, supra*, 111 Cal. App. 5th at 196.)

Plaintiff asserts that in 2002 or 2003, when she was 12 or 13 years old, the County and Agency placed her in the foster home of Raul and Florentina Ramirez. (Decl. of Plaintiff, ¶¶ 2, 3.) She claims that from 2003 to 2004, Raul Ramirez sexually abused and assaulted her two to four times per week. (Id at ¶ 5.) Plaintiff asserts that she told a social worker called Pratima about the abuse. (Id at ¶ 18.) Following her disclosure, she remained at the Ramirez home for several months, during which time the abuse continued. (Id at ¶ 21.) Plaintiff was temporarily removed to a different foster home but was eventually returned to the Ramirez home. (Id at ¶¶ 21, 22.) The abuse continued until Plaintiff ran away at age 14. (Id at ¶ 25.)

The County has not produced any evidence that reported Plaintiff's allegations of sexual abuse to law enforcement or the District Attorney. The County argues that Plaintiff cannot establish a duty to report because there is no evidence that the social worker to whom Plaintiff made the allegations was a County employee or that any other County employees knew or had reasons to suspect a reportable instance of child abuse. It is undisputed that Plaintiff was unsure whether Pratima was employed by the County or the Agency. (UMF No. 20.)

Plaintiff asserts that the County was aware of her allegations of abuse based on Riverside County's juvenile records of Plaintiff's case. The records appear to show that on October 12, 2004, County Social Worker, Daniela Elihu and Supervisor Tsai met with Plaintiff and her temporary foster parents, Shonna and Robert Brockway in person to discuss her foster placement. (Plaint. COE, Ex. C.) Plaintiff requested to be returned to her prior home but was informed that she could not be returned because she made "allegations against them previously." (Id.) While this record is somewhat vague, it appears to show that the County had actual knowledge of child abuse allegations. This creates a triable issue as to whether the County complied with its mandatory reporting obligations under Pen. Code § 11166(i). Because Plaintiff has established triable issues exist as to one of the enumerated bases of direct liability, summary adjudication of Issue 2 is denied.

Issue 3: Negligent Hiring, Supervision and Training:

Generally, an employer may be directly liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit." (Federico v. Sup. Ct. (Jenry G.) (1997) 59 Cal.App.4th 1207, 1210-1211, 1214.) However, because public entity liability must be based on statute, there is no direct liability for negligent supervision and training against a public entity. (*De Villers v. County of San Diego* (2007) 156 CA4th 238, 252; *Munoz v. City of Union City* (2004) 120 CA4th 1077, 1114.) Plaintiff does not address this issue. Thus, to the extent that this issue completely disposes of an issue of duty, summary adjudication is granted.

Issue 4: Discretionary Immunity under Gov. Code § 820.2:

Gov. Code § 815.2 provides that a public entity may be vicariously liable for injury proximately caused by its employee's act or omission within the scope of employment if the act or omission would otherwise have given rise to a cause of action against the employee. Gov. Code § 820 provides: "Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code § 820(a).)

Gov. Code § 820.2 grants immunity to public employees for injuries resulting from certain discretionary decisions by providing: "Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." But "virtually every public act admits of some element of discretion." (*Tarasoff v. Regents of Univ. of Cal.* (1976) 17 Cal.3d 425, 445 [citing *Johnson v. State of Cal.* (1968) 69 Cal.2d 782].) However, the immunity applies to basic policymaking or planning decisions but not ministerial or operational level decision-making. (*Perez-Torres v. State of Cal.* (2007) 42 Cal.4th 136, 142–143.) "[T]o be entitled to immunity[,] the [defendant] must make a showing that such a policy decision, consciously balancing risks and advantages, took place. (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 793.)

Plaintiff alleges that the County was negligent in the placement and supervision of Plaintiff while in foster care after obtaining actual or constructive notice that she was being abused by Ramirez. (Comp. ¶¶ 64-66.) The determination to place a child in a particular foster home is a discretionary decision, as opposed to a ministerial decision, and is generally subject to immunity under section 820.2. (*County of Los Angeles v. Superior Court* (2002) 102 Cal. App. 4th 627, 644; *D.G. v. Orange County Social Services Agency* (2025) 108 Cal. App. 5th 465, 473.) However, for the immunity to apply, the court must determine that the "whether the employee who made the decision at issue "actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiff's complaint. ... [¶] ... [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in 'discretionary activity' is irrelevant if, in a given case, the employee did not render a considered decision." (Id at 473-474.)

The County argues that there is no evidence that Pratima was actually a county employee. Because there is no employment or agency relationship between the County and Pratima, the County cannot be liable for her acts or omissions. As stated above, the claims based on vicarious liability are time-barred because the revival statutes apply only to acts or omissions of the County. Accordingly, this issue is essentially moot. Therefore, summary adjudication of this issue is granted.

Issue 5: Foreseeability and Actual Notice:

The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion.” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.) The existence of a duty of care, required for any negligence claim, is a question of law, decided on a case-by-case basis. (*M.W. v. Panama Buena Vista Union School District* (2003) 110 Cal.App.4th 508, 516.) The existence of a duty of care depends on whether the particular harm to the plaintiff is reasonably foreseeable. (*Id* at 518-519.) “[E]ven when a defendant has formed a special relationship with a plaintiff, courts uniformly hold that the defendant has no duty to protect the plaintiff from unforeseeable third party criminal conduct.” (*J.L. v. Children’s Institute, Inc.* (2009) 177 Cal. App. 4th 388, 396.) In the foster care setting, there is no duty to prevent sex abuse by a third party absent actual notice of a criminal propensity and risk. (See *Jane Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 686, fn.8.) Thus, Plaintiff must prove that Mr. Ramirez’s alleged sexual abuse of her was reasonably foreseeable or anticipated by actual notice to the County’s child welfare agency. (See *J.L., supra*, 177 Cal.App.4th at 396; *Margaret W. v. Kelley R.* (2006) 139 Cal.App.4th 141, 156.)

It is undisputed that the County formed a special relationship with Plaintiff, who was under its custody and control. The County argues that it owed no duty to protect Plaintiff from the sexual abuse perpetrated by Raul Ramirez since there is no evidence of actual knowledge. However, as stated above, the juvenile records for Plaintiff’s case show that the County had knowledge of Plaintiff’s allegations against the Ramirez home. (COE, Ex. C.) This record was made in October 2004 while Plaintiff was residing in the Brockway home. (*Ibid.*) Plaintiff claims that she was returned to the Ramirez home after this record was made. (Decl. of H.H., ¶ 22.) The abuse allegedly resumed during Plaintiff’s second stay at the Ramirez home. (*Id* at ¶ 24.) Therefore, there is arguable a triable issue of fact as to whether the County had actual knowledge that Raul Ramirez abused Plaintiff prior to October 2004. It was foreseeable that the abuse would continue once Plaintiff was returned to the Ramirez residence. Summary adjudication is denied.